

(2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court “explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” (*Ibid.* quoting *Landis v. North American Co.* (1936) 299 U.S. 248, 254.)

Plaintiff has failed to show that a stay of these proceedings will ‘accommodate the ends of justice’ or promote any judicial efficiency.

Conclusion

Plaintiff’s motion for a stay of the proceedings is **denied**.

The Court issues an Order to Plaintiff Cecily Taylor to appear and show cause, on Friday May 8, 2026 at 9:00 a.m. in Department 32, as described above and sets hearing on the Order to Show Cause for Friday, May 8, 2026 at 9:00 a.m. in Dept. 32.

10. 9:00 AM CASE NUMBER: C25-03717
CASE NAME: KRISTIN OWEN VS. US BANK TRUST NATIONAL ASSOCIATION
HEARING IN RE: AND NTC FOR PRELIMINARY INJUNCTION
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff Kristin Owen’s Motion for Preliminary Injunction (“Motion”).

Procedural Background

Plaintiff filed her Complaint for Preliminary and Permanent Injunctions, and for Damages on December 23, 2025. That same date, Plaintiff filed the Motion currently before the Court. Defendant opposes the Motion.

Defendant’s Request for Judicial Notice is **granted**. (Evid. Code § 452 (d).)

Standard

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving

party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.) This determination is made on a sliding-scale such that “the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Id.* at 678.) “However, ‘[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is a possibility that the plaintiff would ultimately prevail on the merits of the claim.’” (*Ibid.*)

The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O’Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal. 4th 1452, 1481.)

Thus, a “plaintiff seeking a preliminary injunction bears the burden of presenting facts which show a reasonable probability that he will succeed on the merits.” (*Citizens for Better Streets v. Board of Supervisors* (2004) 117 Cal.App.4th 1, 6.) To meet this burden, the party moving for the preliminary injunction must establish facts with affidavits or a verified complaint. (See e.g. CCP § 527(a).) An “injunction may issue *only* upon a satisfactory showing of sufficient facts *under oath*.” (*Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 148.) “The requirement that good cause, *under oath*, must be shown in support of an injunction, is jurisdictional.” (*Ibid.*)

Analysis

Initially, the Court notes it is unclear what relief Plaintiff is seeking via this Motion. The underlying dispute appears to relate to Plaintiff’s occupancy of real property located at 742 Wedgewood Drive in Pittsburg, California. The introduction to the Motion states that “Defendant should be ordered to return the Property to the plaintiff and to leave the plaintiff alone until this case is resolved.” The Proposed Order, however, states that the Defendant is restrained from performing “any of the following acts: The defendant never properly notified us of the sold of the property needs to be given back to us per exhibit a.” The Court notes that there is no “exhibit a” attached to the Proposed Order nor the Motion.

As to the merits of the Motion, a plaintiff moving for a preliminary injunction

has the burden to produce facts *under oath*, via, for example, affidavits, declarations, or a verified complaint, that supports their claims. (*Ancora-Citronelle Corp.*, supra 41 Cal.App.3d at 148.) The Complaint is not verified. As for the declaration in support of the Motion, it fails to include any such evidence. It merely states: “Plaintiff has evidence that modification has since been made by Selene finance. Prior lender and Selene is wailing to work with plaintiff.” (Owen Decl. ¶ 3.) No additional evidence, for example the documents showing a modification, has been submitted.

Thus, on its face, Plaintiff has failed to meet her burden to produce any evidence to support her request for a preliminary injunction.

Even if the Court were to get to the weighing of the likelihood of prevailing and balancing of harms, Plaintiff has failed to meet her burden. As to the likelihood of prevailing, Plaintiff has failed to show what cause(s) of action she would likely prevail on. The Complaint is one for a preliminary and permanent injunction – i.e. for injunctive relief in general. “Injunctive relief is a remedy, not a cause of action. [Citations.] A cause of action must exist before a court may grant a request for injunctive relief.” (*Ivanoff v. Bank of America, N.A.* (2017) 9 Cal.App.5th 719, 734.)

As Plaintiff has failed to identify any cause of action at issue, she has failed to show she is likely to succeed on any of her underlying claims. If a party fails to show they are likely to succeed on the underlying claims, the Court does not address the balancing of harms. (*Butt*, supra, 4 Cal.4th at 677-678.)

Conclusion

The granting of a mandatory preliminary injunction “is not permitted except in extreme cases where the right thereto is clearly established and it appears that irreparable injury will flow from its refusal.” (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O’Connell*, supra, 141 Cal. 4th at 1481.)

Plaintiff has failed to meet this substantial burden. Based on the above, Plaintiff’s motion for a preliminary injunction is **denied**.